

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JUNE 26, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**MARTHA SANCHEZ, on behalf of herself and all others similarly situated, vs.
DESIGNERX PHARMACEUTICALS, INC.
Case No. CU23-05537**

Motion for Final Approval of Class Action Settlement

TENTATIVE RULING:

Parties to appear.

Plaintiff MARTHA SANCHEZ moves for final approval of the settlement reached with Defendant DESIGNERX PHARMACEUTICALS, INC. The settlement concerns a class action involving alleged wage and hour violations, unreimbursed business expenses, violation of Business and Professions Code sections 17200 et seq. and PAGA penalties.

The court has not received opposition to the motion.

In a class action the court has broad discretion to determine whether a settlement was fair and reasonable. In reviewing the fairness of a settlement due regard must be given to what is otherwise a private, consensual agreement between parties. Review for fairness is limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud, overreaching, or collusion and that the settlement as a whole is fair and reasonable to all concerned. Considering reasonableness means weighing factors such as the strength of the plaintiffs' case, the risk and expense of further litigation, the amount of settlement, the risk of maintaining class action status through trial, the experience of counsel, the presence of a governmental participant, and class members' opinions of the settlement. Fairness is presumed where a settlement is

the product of arm's-length negotiation conducted after sufficient investigation and discovery to allow intelligent decisions, counsel is experienced in similar litigation, and the percentage of objectors is small. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1389.)

This court preliminarily approved the settlement on January 21, 2026.

The settlement of \$110,000 is fair, reasonable, and not the product of fraud, overreach, or collusion where the settlement was reached after arm's-length mediation. The class involves non-exempt employees who worked between November 21, 2019, through March 24, 2025. The lowest payment will be \$3.75 while the highest will be \$775.76 with an average of \$308.32. There have been no objections and 2 requests for exclusion by class members. Zero notices have been returned as undeliverable, and no class member has disputed the calculated workweeks. 121 class members representing 98.37% of class will be funded.

The PAGA resolution for \$10,000 in civil penalties with 75% paid to LWDA and 25% to aggrieved employees is reasonable.

The court finds an enhancement award to the named plaintiff of \$5,000 is reasonable.

The costs of the settlement administrator of \$7,500 are reasonable (moving papers erroneously cite \$10,000 while the declaration of Taylor Mitzner specifies \$7500.).

The court finds that while counsel is experienced in this type of litigation and is requesting less than the lodestar based upon reported hours and claimed rates, one-third of the gross settlement of \$101,000 is excessive given the final amount at issue, the desire to ensure sums are actually paid to the allegedly damaged individuals, the cookie-cutter nature of the litigation, the absence of active litigation in the underlying matter and the total amount of the settlement. The court approves 30% of the gross settlement as reasonable attorneys' fees.

The court approves \$13,527.57 in reimbursement for reasonable costs incurred by plaintiff's counsel.

Hearing to confirm final distribution of funds, including deposit of any unclaimed funds, is set for **March 11, 2027, at 8:30 a.m.** A declaration confirming compliance, including disposition of the unclaimed proceeds, shall be filed 15 days prior to the hearing.

Plaintiff shall prepare the order after hearing and judgment incorporating Code of Civil Procedure section 664.6 which shall be approved as to form by defense counsel pursuant to Cal. Rules of Court, rule 3.1312(e) prior to submission to the court.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002